

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ZHENIA MEDINA GUTIERREZ,

Petitioner

VS.

MARTIN JOEL QUIROZ IBANEZ,

Respondent

) Case Number: FDI-25-801424

) Hearing Date: September 1, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME), VEHICLE AS
COMMUNITY PROPERTY

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Zhenia Medina Gutierrez (Mother) and Respondent Martin Joel Quiroz Ibanez (Father). They share one minor child: Bruno J. Quiroz Medina (DOB: 12/07/16).
- 2) On April 20, 2026, Father filed a Request for Order seeking initial child custody and visitation orders. Father requests joint legal custody and for Mother to have physical custody. As to visitation, Father requests parenting time every weekend from Friday at 7:00 p.m. through Sunday at 7:00 p.m. Father also asks the Court deny Mother's request that the 2016 Toyota Corolla be considered community property.
- 3) On June 22, 2026, Readiness hearing was conducted, and the matter was referred to FCS Mediation to occur on July 22, 2026, and the matter was set for return hearing on August 11, 2026.

- 1 4) On August 11, 2026, the matter was continued as Mother did not provide Father and the Court
2 with notice of her objections to the Court's tentative ruling. The Court did not adopt its tentative
3 ruling and continued the matter to September 1, 2026.

4 **B. Findings and Order**

- 5 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
6 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
7 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
8 child(ren) is the United States.
- 9 2) The Court DENIES without prejudice Respondent's request to declare the 2016 Toyota Corolla a
10 separate property asset. This is an issue for trial. The Court will adjudicate this issue, at the time
11 of the final trial in this matter.
- 12 3) The parties shall share joint legal and joint physical custody of the minor child.
- 13 4) Father's parenting time shall be on the 1st, 3rd and 5th weekends of each month from Friday after
14 school (if no school, 4:00 p.m.) through Monday morning drop of the child at school. Father to
15 provide the transportation to and from his parenting time.
- 16 5) Father shall also have parenting time with the minor child every Wednesday from after school
17 until 7:30 p.m. Father shall provide the transportation to and from his parenting time.
- 18 6) Mother shall have care and custody of the minor child during all other times.
- 19 7) The parties shall meet and confer to develop a Holiday schedule for their parenting time. If they
20 are unable to do so, either of them may file a Request for Order seeking the Court's assistance in
21 developing a Holiday schedule.
- 22 8) The Court will prepare the Findings and Order After Hearing.
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